EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 61021/10
Zekine ŞAHAN against Turkey
and 4 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 5 December 2017 as a Committee composed of:

Nebojša Vučinić, *President,*
Valeriu Griţco,
Jon Fridrik Kjølbro, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by S. Karaduman, a lawyer practising in Ankara.

The Turkish Government ("the Government") were represented by their Agent.

The applicants, civil servants, complained under Article 11 of the Convention that the disciplinary sanctions imposed on them for taking part in a demonstration, had constituted an unjustified interference with their right to freedom of association. Relying on Article 13 of the Convention, they further complained of lack of a domestic remedy under Turkish law by which to challenge the disciplinary measures.

On 23 June 2017 and 17 October 2017 the Court received friendly settlement declarations signed by the parties under which the applicants agreed to waive any further claims against Turkey in respect of the facts giving rise to these applications against an undertaking by the Government

to pay them each 500 Euros (EUR) to cover any and all non-pecuniary damage and a total of EUR 900 in respect of costs and expenses, which will be converted into national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

THE LAW

Given that the applications at hand concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 11 January 2018.

Hasan Bakırcı Deputy Registrar	Nebojša Vučinić President

APPENDIX

No.	Application no.	Lodged on	Applicant Date of birth Place of residence
1.	61021/10	07/09/2010	**Zekine ŞAHAN** 15/10/1965 Ankara
2.	61249/10	07/09/2010	**Haydar Ali ÜNAL** 10/12/1960 Ankara
3.	70689/10	04/10/2010	**Bora KOÇ** 17/07/1979 Ankara
4.	70706/10	04/10/2010	**Yılmaz YILDIRIMCİ** 01/02/1970 Ankara
5.	70733/10	04/10/2010	**Zeynal AKKUŞ** 08/07/1964 Ankara